

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



August 22, 2019

The Honorable Peter C. Deddeh
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112-2724

Re: Scott Raymond Behnke
CDCR No: F38068
Case No: SCD183245
Date of Sentence: August 17, 2006

Dear Honorable Peter C. Deddeh:

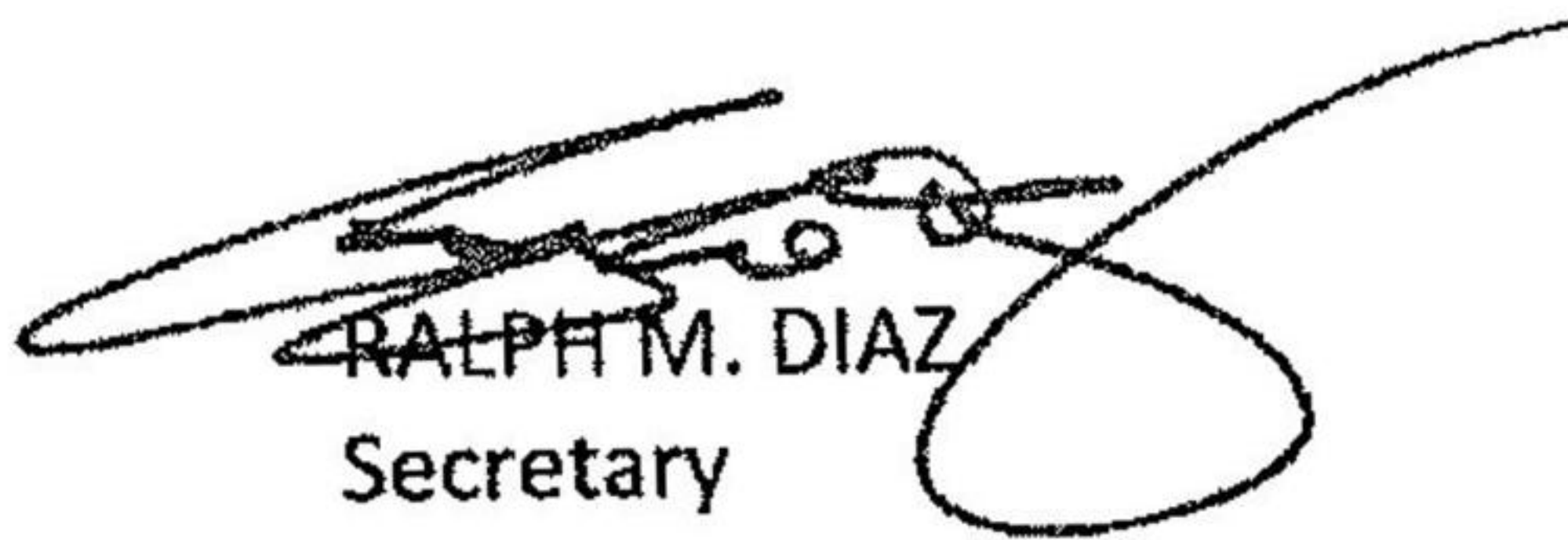
The purpose of this letter is to provide the court with the authority to resentence inmate Scott Behnke, F38068, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Behnke is commended for not receiving any serious disciplinaries since February 2007. He has completed Masonry Level I through III and was active in Arts in Corrections. He was also involved in the Re-Direct Program providing assistance to at-risk youth. He has attended various self-help classes including: Self Awareness and Recovery, Criminal and Addictive Thinking, Substance Abuse Treatment, Anger Management, Insight, Domestic Violence and Relationships with Women, Model of Transformation, Creative Conflict Resolution, Narcotics Anonymous, Positive Parenting and Criminals and Gang Members Anonymous.

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Having reviewed the enclosed documentation it appears that inmate Behnke's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: San Diego County District Attorney's Office
San Diego County Public Defender's Office